TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Zoning Board of Appeals

Tamara McCaslin – Chair ***Jamie Lease***– Vice-Chair
Mara Kalat – Secretary ***Jeff Simons*** – Member
Deb Sherrod – Township Board Rep.

Dick Hassberger – Zoning Administrator
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, November 13, 2024

The meeting was called to order by Chair McCaslin at 7:00 pm.

Roll Call:
Present – Board Members: McCaslin, Kalat, Simons
Staff: Zoning Administrator Dick Hassberger, Recording Secretary Sherrod
Absent – Lease, excused
Public – 3

Approval of Agenda: Simons moved to approve the agenda as presented; Kalat seconded. Motion passed with all in favor.

Public Comment: Chair McCaslin stated the following:
There will be 3 Public Comments periods.

Approval of Minutes:
Regular Meeting minutes of Wednesday, April 10, 2024 – It was moved by Kalat and seconded by Simons to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a Variance was made by Royal Miller on October 7, 2024, for property located at 139 Arbor Drive, Lake, Michigan 48632, consisting of Lot 2 and the N ½ of Lot 3, T18NR5w, section 8. Tax ID #010-100-002-00. He is requesting approval to build an attached "pavilion" on the deck which would not meet setback requirements.

Public Notice: Notice of public hearing was posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* on October 24, 2024:

"The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, November 13, 2024, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal of Royal Miller for a variance on the property #010-100-002-00, Section 8 of Bearly Addition. The property is located at 139 Arbor Drive, Lake, Michigan 48632. This appeal is to consider the construction of a pavilion which does not meet zoning ordinance setback requirements. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, November 12, 2024."

Notifications by mail were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA.

Explanation of Practical Difficulty: Chair McCaslin read the following brief explanation of the "practical difficulty" requirements needed for a person to request a zoning variance:

The Lincoln Township Board of Appeals will follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Township. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section 8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

A. Practical Difficulty: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to unique circumstances specific to the property such as its

narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property.

B. Circumstances: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. The variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
C. Ordinance Purpose Adherence: Does this request relate to properties other than described in the Variance request?
D. Variance Harmony: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
E. Effects: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
F. Property Use: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
G. Minimum Variance: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application: The requested structure does not meet setback requirements.

Purpose: The purpose of this hearing is to determine if indicators exist to grant a variance as the zoning permit filed by the residents on October 7, 2024, was denied due to the required setbacks not being met. Application for a variance was made on September 4, 2024, by Royal Miller of 11205 Glennmark Trail, Montrose, Michigan 48457, to allow construction of a pavilion out of compliance with setback requirements.

Correspondence & Communications to ZBA: Chair McCaslin read an email communication from a neighbor which was addressed to Clerk Majewski.

Presentation by Lincoln Township Zoning Administrator:
ZA Hassberger presented his background information with the Millers and their inability to operate the retractable awning currently being used. ZA Hassberger suggested a motorized awning.

Presentation by the Petitioner: Mr. Miller then explained the situation at his property and that a past injury has made it impossible for him to operate his current awning. He then described the proposed construction which would consist of two permanent posts for supporting an awning. Mrs. Miller added that the reason that the pavilion posts would have to go out beyond the existing cement pad is in order to sink them below the frost line. The awning would then become a stationary pavilion.

ZBA Members Comments & Questions:
Simons asked if the pavilion would be attached to the house. Miller answered that it will be attached to the house.

McCaslin asked for clarification of the measurements of the deck and the distance from the lakefront.

McCaslin asked about the height of the new structure which will cover a 16 by 18 foot section of the deck.

Kalat asked about how long the deck has been there; it has been there since before the Millers purchased the property.

Public Comment: Chair McCaslin stated the following:

a. Agenda items only please
b. All comments are to be addressed to the chair
c. Each speaker to give their name and address
d. A time limit may be imposed, chair reserves the right to terminate the presentation or ask for a summation if comments are repetitive.

A neighbor commented on the fact that this structure will block their view of the lake.

Public Comment Closed by Chair McCaslin then opened the closed session in which there was discussion and further questions by ZBA Members without comments or questions from the public.

McCaslin clarified that the deck is already nonconforming and cannot be added to. There was a short discussion between the board and Mr. Miller about nonconformity.

Simons stated that if it weren't for the setbacks, it would be aesthetically pleasing.

Chair McCaslin then closed the closed session and reopened the open session.

Without further questions or comments, McCaslin announced that the ZBA members will now work on their Finding of Facts.

ZBA Members Finalize Finding of Facts Form:
An explanation of this process is given to the applicant that after the ZBA makes and accepts a motion to deny or approve the Variance Request the applicant may wait to receive a final decision paper for court purposes. If the applicant does not want to wait for the final decision paper, please state your preferred method of receiving the final decision form, either by certified USPS mail and/or e-mail, and provide the correct addresses for each method.

Motion: McCaslin made the following motion: In regard to the variance requested by Royal Miller, applicant, for the property at 139 Arbor Drive, Lake, Michigan 48632, tax ID #010-100-002-00, to allow the construction of a pavilion, out of compliance with the front yard setback requirement of the Lincoln Township Zoning Ordinance. I will make a motion that the Zoning Board of Appeals deny the variance request. Simons seconded.

Roll Call Vote: McCaslin: Yes; Kalat: Yes; Simons: Yes . Motion Passed; the appeal is Denied

Public Comment: One final comment by Mr. Miller was made concerning his disappointment that he will now have to put up a temporary structure which will not be as attractive as his proposed structure.

Adjournment: Simon made a motion to adjourn; Kalat seconded. Motion passed with all in favor. Meeting adjourned at 7:34 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary